

Syllabus

GAMBLE *v.* UNITED STATESCERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE ELEVENTH CIRCUIT

No. 17–646. Argued December 6, 2018—Decided June 17, 2019

Petitioner Gamble pleaded guilty to a charge of violating Alabama’s felon-in-possession-of-a-firearm statute. Federal prosecutors then indicted him for the same instance of possession under federal law. Gamble moved to dismiss, arguing that the federal indictment was for “the same offence” as the one at issue in his state conviction, thus exposing him to double jeopardy under the Fifth Amendment. The District Court denied this motion, invoking the dual-sovereignty doctrine, according to which two offenses “are *not* the ‘same offence’” for double jeopardy purposes if “prosecuted by different sovereigns,” *Heath v. Alabama*, 474 U. S. 82, 92. Gamble pleaded guilty to the federal offense but appealed on double jeopardy grounds. The Eleventh Circuit affirmed.

Held: This Court declines to overturn the longstanding dual-sovereignty doctrine. Pp. 683–710.

(a) The dual-sovereignty doctrine is not an exception to the double jeopardy right but follows from the Fifth Amendment’s text. The Double Jeopardy Clause protects individuals from being “twice put in jeopardy” “for the same offence.” As originally understood, an “offence” is defined by a law, and each law is defined by a sovereign. Thus, where there are two sovereigns, there are two laws and two “offences.” Gamble attempts to show from the Clause’s drafting history that Congress must have intended to bar successive prosecutions regardless of the sovereign bringing the charge. But even if conjectures about subjective goals were allowed to inform this Court’s reading of the text, the Government’s contrary arguments on that score would prevail. Pp. 683–685.

(b) This Court’s cases reflect the sovereign-specific reading of the phrase “same offence.” Three antebellum cases—*Fox v. Ohio*, 5 How. 410; *United States v. Marigold*, 9 How. 560; and *Moore v. Illinois*, 14 How. 13—laid the foundation that a crime against two sovereigns constitutes two offenses because each sovereign has an interest to vindicate. Seventy years later, that foundation was cemented in *United States v. Lanza*, 260 U. S. 377, which upheld a federal prosecution that followed one by a State. This Court applied that precedent for decades until 1959, when it refused two requests to reverse course, see *Bartkus v. Illinois*, 359 U. S. 121; *Abbate v. United States*, 359 U. S. 187, and it has